

Telangana Agricultural Holdings (Census) Act, 1957

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State of Telangana - Act

Telangana Agricultural Holdings (Census) Act, 1957

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Telangana Agricultural Holdings (Census) Act, 1957

Act 11 of 1957

Published on 1 November 1956

Commenced on 1 November 1956

[This is the version of this document from 1 November 1956.]

[Note: The original publication document is not available and this content could not be verified.]

Telangana Agricultural Holdings (Census) Act, 1957

(Act

No. 11 of 1957

)

Last Updated 8th January, 2020

The Andhra Pradesh Agricultural Holdings (Census) Act, 1957, in force in the combined State, as on 02.06.2014, has been adapted to the State of Telangana, under section 101 of the Andhra Pradesh Reorganisation Act, 2014 (Central Act 6 of 2014) vide. the Telangana Adaptation of Laws Order, 2016, issued in G.O.Ms.No.45, Law (F) Department, dated: 01.06.2016.

1.

Short title, extent, and commencement.

(1)

This Act may be called the [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

Agricultural Holdings (Census) Act, 1957.

(2)

It extends to the territories of the State of [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

which, immediately before the 1st November 1956, were comprised in the State of Andhra.

(3)

It shall be deemed to have come into force on the 21st September, 1957.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"holding" means a parcel or parcels of land held by a landholder in one or more villages in the same district or different districts to which this Act applies, and includes land cultivated by him personally or leased out tenants.

Explanation. - Where a land is held by two or more landholders jointly, only that portion of it which belongs to the share of each landholder shall be deemed to be included in his holding;

(b)

"land" means land which is used, or is capable of being used, for agriculture or horticulture, and includes cultivable waste land and land used for grazing purposes;

(c)

"landholder" means the owner of the land, and includes,-

(i)

in the case of land held under ryotwari tenure, the person holding such land;

(ii)

in the case of an inam land other than an estate, the holder of such land;

(iii)

in the case of an estate notified under the Andhra Pradesh (Andhra Area) Estates (Abolition and Conversion into Ryotwari) Act, 1948,(Act XXVI of 1948). the landholder or the ryot entitled to ryotwari patta under that Act in respect of the lands to which he is so entitled;

(iv)

in the case of any other estate, the ryot in respect of the land in which he has a permanent right of occupancy and the landholder in respect of his private land; and the heirs, assignees, legal representatives of such owner, or person deriving title from him.

3.

Landholders to furnish declaration of holdings.

(1)

Every landholder of a holding the total extent of which exceeds twenty acres of land on the date of commencement of this Act, shall within ninety days thereafter, furnish a declaration of his holding as on that date, to the Tahsildar within whose jurisdiction his holding or any part thereof is situated.

(2)

Without prejudice to the provisions of sub-section (1), the Revenue Divisional Officer or other officer empowered by the State Government in this behalf, shall have power to issue notice requiring any landholder whom he has reason to believe resides, or holds land, within his jurisdiction, to furnish to him a declaration of his holding as on the date of commencement of this Act, within such period as may be specified in the notice (not being less than thirty days from the date of its issue); and it shall be the duty of such landholder to furnish the declaration, whether or not he resides or holds land within the jurisdiction of such Revenue Divisional Officer or other officer aforesaid.

(3)

Every declaration furnished under sub-section (1) or sub-section (2), shall be in the form set out in the Schedule to this Act; and the landholder shall be entitled to obtain a receipt in respect of the declaration so furnished.

Explanation. - In the case of a landholder who is subject to any disability (such as being a minor, lunatic or the like), or is an idol, or a religious or charitable institution, the declaration shall be furnished by the guardian, curator, trustee or manager of such landholder.

4.

Penalties.

- Any landholder or guardian, curator, trustee or manager, as the case may be, who refuses or fails to furnish a declaration of his holding within the period specified in sub-section (1) of section 3, or in the notice issued under sub-section (2) of that section, or furnishes any declaration which he knows or has reason to believe to be false, incorrect, or incomplete, shall be punishable with fine which may extend to five hundred rupees, and with an additional fine which may extend to one hundred rupees for every day after the first during which the offence continues.

Explanation. - If a false, incorrect or incomplete declaration has been furnished under section 3, the offence shall be deemed to continue until a true, correct and complete declaration has been furnished.

5.

Power to make rules.

(1)

The State Government may, by notification in the [Telangana]
[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]
Gazette, make rules to carry out all or any of the purposes of this Act.

(2)

All rules made under this section after the passing of this Act shall be laid on the Table of the Legislature as soon as possible after they are made and shall be subject to such modifications, whether by way of repeal or amendment, as the Legislature may make within fourteen days thereafter during the session in which they are so laid.

6.

Power to remove difficulties.

- If any doubt or difficulty arises in giving effect to the provisions of this Act, the State Government may by order make such provisions, not inconsistent with the purposes of this Act, as appear to them to be necessary or expedient for removing the doubt or difficulty.

7.

Repeal of Andhra Pradesh Ordinance III of 1957.

(1)

The Andhra Pradesh Agricultural Holdings (Census) Ordinance, 1957, is hereby repealed.

(2)

Any rules made, notifications issued, orders passed, action taken or thing done in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been made, issued, passed, taken or done in the exercise of the powers conferred by or under this Act.

Schedule

[see section 3 (3).]

Form of Declaration

Name and address of the landholder.....

Wet Land

District

Taluk

Village

S.No., Paimash No., etc., of land.

Extent

Extent of waste land in item (5)

Extent of land under item (5) leased to a tenant.

Period of lease

Remarks

(1)

(2)

(3)
(4)
(5)
(6)
(7)
(8)
(9)

Total wet Land.

Dry Land

(1)
(2)
(3)
(4)
(5)
(6)
(7)
(8)
(9)

Total dry Land...

Grand total of wet and dry Lands...

Extent of land forming a compact block out of
the grand total of land mentioned above:

}

Extent of wet land in such compact block

Extent of dry land in such compact block

(i)

'Wet land' means land which is registered as wet in the revenue accounts or which has been irrigated continuously for a period of not less than 3 years preceding the commencement of this Act; and dry land means all other land.

(ii)

'Waste land' means land which has remained uncultivated for a continuous period of not less than 3 years preceding the commencement of this Act.

(iii)

'Compact block' means lands contiguous to one another of an aggregate extent exceeding 50 acres.

I hereby solemnly declare that the information furnished above is full and correct to the best of my knowledge and belief.

Signature of the Landholder.

Note. - In the case of a landholder who is subject to any disability or is an idol or a religious or charitable institution, the declaration shall be signed by the guardian, curator, trustee or manager of such landholder, the relationship of such declarant to the landholder being clearly specified together with the address of such declarant.

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